

peal is returned to said court ; and the clerks of said courts, are hereby authorised to refuse receiving any appeal from said commissioners until the party praying the same, shall have paid the said sum of two dollars to said clerks, and that any law, making it the duty of the clerks of the commissioners offices, to attend as clerks in the supreme court in trials upon appeals from said commissioners be, and the same is hereby repealed.

1811.

CHAP. 37. An Act to divorce Henry Massengale, senior, of Sullivan county, from his wife Mary. [Passed October 17, 1811.]

CHAP. 38. An Act to authorise the drawing of a lottery, for the benefit of M'Minn academy, in the county of Hawkins, and to appoint additional trustees for the same. [Passed October 24, 1811.]

CHAP. 39. An Act to afford further time for the proving and registering grants, deeds of conveyance, and other instruments required by law to be registered. (Passed October 24 1811.)

1. *Be it enacted by the General Assembly of the State of Tennessee,* That if any person or persons, have failed or neglected to register his or her grant, deed, or other instrument required by law to be registered, it shall be lawful for such person to cause or procure the same to be registered at any time within two years, from the passage of this act, under the same rules, regulations and restrictions, as are provided by an act, entitled, "an act for the relief of such persons as have or may suffer by their grants, deeds, mesne conveyances, bills of sale or other instruments of writing, not being proved or registered within this state," passed the 23d of November, 1809, and such grants, deeds or other instruments, so proven and registered, shall be as good and valid in law, as if the same had heretofore been registered according to the provisions of the before recited act ; and where any such grants, deeds or other instruments, have been registered, though not within the time limited by law, the same shall be as valid as if registered according to the provisions of the before recited act.

2. *Be it enacted,* That all deeds of conveyance, or other instruments required by law to be registered, may be proved in any court of record in this state, by any of the subscribing witnesses thereto, and thereupon be registered, if the other subscribing witness or witnesses thereto, be dead, or reside out of the limits of this state ; and if the grantor, bargainor, or maker of any such instrument be dead, and all the subscribing witnesses thereto be dead, the hand writing of the grantor, bargainor or maker of such instrument, or the hand writing of any, or all of the subscribing witnesses thereto, may be proved in any of the courts aforesaid ; and on such proof so

1794, ch. 22.
Aug. 1796, ch.
5. Oct. 1797,
ch. 42. Nov.
1801, ch. 20,
1803, ch. 57.
1805, ch. 12,
as to certain
deeds in
Greene coun-
ty, ch. 16.
1806, ch. 1. s.
48. ch. 40.
1807, ch. 2. s.
54. ch. 35.
Apl. 1809, ch.
14, 26, 33.
Nov. 1809, ch.
100, 104. 1812,
ch. 76. 1813,
ch. 81. 1815,
ch. 1, 179.
1817, ch. 45.
1819, ch. 47.
1820, ch. 1.
Two years
allowed.

Provision for
registration in
cases where
witnesses are
dead.